Impact of ICT Skills upon Legal Professionals of Lahore High Court Bar Association and Their Practice

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Abstract:

Objective:

Objective of this research was to investigate the impact of ICT skills upon Legal Professionals of Lahore High Court Bar Association and their Practice.

Methodology:

In view of the suitability and usability as well as the previous studies conducted in the field, the survey research method was adopted for this study. The population of was Advocates of Lahore High Court, Pakistan. Simple random sampling technique was adopted to conduct this study. The survey questionnaire was adapted as a data collection tool for this study. After collection of data, a numerical analysis using SPSS was performed to present the data into tangible results. Several tests were then performed to get maximum findings from the collected data. The t-test was performed in order to find out the impact of ICT skills and the information use & access upon practice of the Legal Professionals.

Key Findings:

Findings of the study reveal that digital media has a great impact on information seeking digital resources enhanced information searching capabilities of users. When Legal Professionals use digital information resources it makes easy to prepare the case. E-resources have a positive impact on their professional efficiency. They prefer digital resources over print resources if they are well trained to use these digital resources.

Rationale of the Study

Legal Professionals need to be more and more responsible in order to get the mastery of legal research in digital environment. The clients in general and the profession of law in particular demand the lawyers to be professionally sound with the latest tools and techniques in the practical field. Therefore, in order to survive in an information and knowledge society, it is important that Legal Professionals learn the required digital skills.

Key Words:

ICT skills and advocates, Impact of IT upon legal practice, Legal Professionals and digital expertise

1.0 Background to the Study:

Digital competencies are highly essential to excel in any field of life. Legal profession also requires ICT competencies in order to perform well in the field. Koo (2007) stated in his study found out that majority of lawyers perceive a major gap between their studies in law schools and the skills they actually required in the field. ICT skills do not cover only a specific area. These make coverage of a number of allied areas. These competencies enable a practitioner to manager affairs of his profession efficiently. Present era is ever changing and full of challenges in which ICT skills are playing a leading role to lead from the front. According to the literature analysis and the theoretical basis of the concept of Digital Competencies, the process of Digital competencies covers the abilities and propensities; "ICT skills; legal research skills; information and knowledge searching skills; competency of selecting authentic legal information; information sharing; information and knowledge creating".

The 2006 recommendation already points to Digital Competence as a fundamental basic skill. Digital Competence is there defined as follows:

> *"Digital Competence involves the confident and critical use of Information Society Technology (IST) for work, leisure and communication. It is underpinned by basic skills in ICT: the use of computers to retrieve, assess, store, produce, present and exchange information, and to communicate and participate in collaborative networks via the Internet." (European Parliament and the Council, 2006).*

Pakistan Bar Council (2015) has defined the term “Legal Practitioner” as “Advocate”. Whereas Garner has stated in the Black's law dictionary (2014) the meaning of “Legal

Practitioner" as "Lawyer"; narrating further the definition of the word "Legal Practitioner" as barristers, special pleaders, certified conveyancers, or solicitors.

The legal research on information & knowledge management has been going rapidly, but in Pakistan, very less work has been done on digital competences of Legal Professionals i.e. information needs and seeking behavior and an unpublished M.Phil thesis by Junaid, S. has been conducted on seeking behavior of advocates of Lahore High Court. However, digital competencies of the Legal Professionals are still an under-explored area.

The digital competencies have remained the focus of Pakistani researchers, like information and communication technology (ICT) competencies, digital literacy, information and knowledge management of various users but least has been done on the topic in legal profession and the Legal Professionals having at least LL.B. degree and play a vigorous role in the dispensation of justice. The study aims to investigate the impact of digital competencies upon Legal Professionals of Lahore High Court Bar Association, Lahore. Legal Professionals deal with information significantly in their profession of law. Therefore, it is very important to explore their ICT skills which are significant for their professional development. Legal Professionals deal with information significantly in their profession of law. Therefore, it is very important to explore the impact of ICT skills upon Legal Professionals.

2.0 Research Question:

- What is the impact of ICT skills upon Legal Professionals in their legal practice?

3.0 Review of Relevant Literature:

Hinson, Atuguba, Ofori, and Fobih (2006) conducted a study to explore the impact of the internet on the working of Legal Professionals in Ghana. They narrated in their study that majority of lawyers are agreed that internet has strengthened their working, the internet is a good communication tool for interaction and the internet is a very important tool for getting information and seeking knowledge. Further, the internet is also important from the business point of view of the lawyers. Ferreira et.al (2007) conducted a study on core competencies and professional development in information professional in Brazil. In this study core competencies and skills include information about the new trend in the field, knowing the relationship between their own field and other fields, development of information and communication technologies, information

management, teamwork, creativity, leadership, searching techniques and identifying the problems. Bierman and Hitt (2007) conducted a study on the topic Globalization of Legal Practice in the Internet Age in which they pointed out that internet has affected the legal profession and professionals all over the world. They further added that the developments in the legal profession such as competition fueled by outsourcing legal work to lower earning lawyer all over the world, changing in lawyer and client interaction, uplifting of law firms and attorney works and much more as a result of the internet. Koo (2007) stated in his study that majority of lawyers perceive major gap what there was thought in the law schools and the skill they actually need in the field. He further stated that today's workplace demand more skill from the Legal Professionals especially with respect to the technology and skills related to technology can groom up the lawyers in the age of technology.

Beall (2008) stated in his study that technology makes you able to perform your task and duties capably and quickly and if attorneys do not use technology they will face more risk and un-comfort with their tasks. Plessis (2008) defined in his study the opportunities that how to become good and efficient legal person with respect to ICT competencies and skills. He defined that knowing that from where the appropriate information can be acquired, knowing that how to find suitable information, how to provide timely information to the clients, communication skill, creative thinking, management of information resources and developing personal systems for discovery required information are the competencies which make a legal practitioner a good lawyer. Kauffman (2010) conducted a study on the topic “Information Literacy in law: starting points for improving legal research competencies” in which the author explored the four approaches which can enhance research skills of lawyers in the USA. These approaches are mandatory to offering research courses at law schools, offer compulsory credit based coursed based on legal research, to offer non-credit course related to legal research. Through these strategies research skills and competencies of lawyers can be enhanced which will be helpful in maintaining digital and technological competencies of the Legal Professionals. Venkatesh et al. (2010) stated that adoption of technology brought fruitful results in the relevant field. In this global world, no professional can make progress in his field without adoption of emerging technologies. ICT skills are not limited to any geographical zone. These skills bring a number of benefits globally.

Gopalakrishnan and Kumar (2013) narrated the digital competencies and skills as a set of knowledge, skill, and attitude which includes strategies, abilities, awareness, and values that are required while using the Information Communication Technology for problem-solving with efficiently, critically and creatively. He further added that the digital competency is the recent concept. Many other terms are also used as synonyms of it like technology skill, ICT skill, digital literacy, information literacy and digital skill which also represent the digital competencies. Ashley (2013) conducted a research on ICT skills required to advocates. The researcher narrated in this study that Legal Professionals should be taught technology-based courses and training related to ICT should be conducted for them to make familiar with the technology. Allbon, E. (2013) mentioned that ICT skills are of great value in the legal professional. Legal professionals should be IT skilled so that they might handle their cases efficiently. They needed to develop relevant skills so that they could not face any possible barriers during their practice on account of manual workload. Technology brought a positive change so it was dire need of the present age to adopt ICT skills without any reservation.

Machado, Sepulveda, and Montoya (2016) narrated the ways through which digital and technological competencies of the students can be enhanced. These ways are the educational environment, learning environment, use of wikis and use of google docs. Aguti (2016) presented a presentation on the topic ICT Integration & Digital Competencies -a must for 21st century teachers at UNESCO Headquarter, Paris in which the presenter mentioned that digital competencies are considered as a set of skills, attitude and knowledge and the development of ICT skills are the core element in the working people. She further added that without the participation of teachers it is very difficult to impart the digital skills and competencies in the students at any level, therefore it is pertinent, teachers must be equipped with the ICT competencies and skills because these skills and competencies are considered to be must in the 21st century.

4.0 Research Method and Design

4.1 Design of the Study

The research design is an exhaustive plan for the data collection aiming to answer the specific research questions as well as to specify the processes of “data collection”, “instrument development”, and “sampling” etcetera. Therefore, this section describes the research approach, research method, population, sample size, sampling techniques, data collection instrument,

validity and reliability of the instrument, data collection procedures, data analysis and statistics used in the study by the researchers.

4.2 Research Method

The "Survey Research" is a significant method for measurement in social science research method that involves the use of standardized questionnaire or interviews to collect the data about people in a systematic manner. Check & Schutt (2012) has defined the survey research as "the collection of information from a sample of individuals through their responses to questions". Therefore, in view of the suitability and usability as well as the previous studies conducted in the field the survey research method has been adopted for this study.

4.3 Population

The population is a group or class of subjects, variables, concepts or phenomena (Wimmer & Dominick, 2011). The population of this study is the Legal Professionals known as the Advocates. That as per Directory (1) of LHCBA of 2016-2017, there were 29119 advocates.

4.4 Selection of Sample

The population is a set of individuals with common characteristics. The population for this study has been the registered members of Lahore High Court Bar Association practicing throughout the Punjab. Keeping in view the relevant literature, extent, nature, and timeline given to accomplish this study, the probability sampling has been chosen while using simple random sampling technique. The sample size of this research was 379.

4.5 Sampling Technique

Simple random sampling technique has been adopted to conduct this study because it eliminates the possibility of classification error and that the representative groups can also be easily accessible.

4.6 Data Collection Instrument

The survey questionnaire has been adapted as a data collection tool for this study.

4.7 Reliability and Validity of the Instrument

A validated and reliable instrument has been used because the validity evaluates whether the study examined what it claimed to be examined or measured. The instrument was also validated via experts of the field under study.

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[1] Directory of Lahore High Court Bar Association, 2016-2017.

4.8 Data Analysis

After collection of data, a numerical analysis using SPSS was performed to present the data into tangible results. Several tests were then performed to get maximum findings from the collected data. The t-test was performed in order to find out the impact of ICT skills and the information use & access upon practice of the Legal Professionals. Percentage and frequencies of responses for each statement of the instrument were also evaluated with the statistical tests performed through SPSS version 17.0.

5.0 Analysis and Results

5.1 Data Analysis

This section comprises the data analysis of Legal Professionals of Lahore High Court Bar Association (LHCBA), the practicing advocates in Lahore High Court, Lahore which is the superior court in the province of the Punjab, Pakistan. The researchers received 294 responses out of 379 questionnaires distributed among the Legal Professionals of Lahore High Court Bar Association. The response rate of the received questionnaires was thus 77.57%. The analysis covered the impact of ICT skills upon Legal Professionals and their practice.

Table 1 Demographic Information (A)

Variables		Frequency	Percentage	Cumulative Percent
Gender	Male	240	81.6	81.6%
	Female	54	18.4	100%
Age	25-34	137	46.6	46.6%
	35-44	118	40.1	86.7%
	45-54	26	8.8	95.6%
	Over 54	13	4.4	100%
Qualification	LL.B.	227	77.2	77.2%
	LL.M	66	22.4	99.7%
	Any other	1	0.3	100%

Table 1 shows data about the respondents and revealed that there were 240 (81.6%) male respondents and 54 (18.4%) female respondents who participated in this study. The data thus indicate That most of the participants were male as compared to the female respondents. The data in Table

1 reveals that 137 (46.6%) respondents were in the age group of 25-34, 118 (40.1%) respondents were in the age group of 35-44, 26 (8.8%) were in the age group of 45-54, and 13 (4.4%) were above 54 years of age. The data in the ‘age' variable also indicates That most of the participants were 25-34 years of the age group which reveals that most of the Legal Professionals were young as compared to other age groups as specified in this study. The "qualification" variable in Table 4.2 reveals that there were 227 (77.2%) respondents having LL.B, 66 (22.4%) respondents were LL.M, whereas the remaining 1 (0.3%) respondent was Bar-at-Law. The data further reveals that the significant number of respondents were LL.B. whereas there was only one respondent having the foreign degree other than LL.B. & LL.M.

Table 2 Demographic Information (B)

Variables		**Frequency**	**Percentage**	**Cumulative Percentage**
Period of using the computer	Less than 1 year	26	8.8%	8.8%
	1-4 years	65	22.1%	31.0%
	5-8 years	61	20.7%	51.7%
	9-12 year	84	28.6%	80.3%
	Over 12 years	58	19.7%	100%
Level of computer literacy skills	Novice	23	7.8%	7.8%
	Intermediate	169	57.5%	65.3%
	Advanced	87	29.6%	94.9%
	Expert	15	5.1%	100%
Use of LHCBA Library	Daily	81	27.6%	27.6%
	Weekly	70	23.8%	51.4%
	Monthly	31	10.50%	61.9%
	Occasionally	97	33.0%	94.9%
	Never	15	5.1%	100%

Table 2 shows that 26 (8.8%) respondents have had less than 1 year experience of using computers, 65 (22.1%) respondents have had 1-4 years of experience of using computers, 61 (20.7%) respondents have had 5-8 years of experience of using computers, 84 (28.6%) respondents have had 9-12 years of experience of using computers, and 58 (19.7%) respondents had over 12 years of experience of using computers. The results show That most

of the participants were having 9-12 years of using computers in their life meaning thereby That most of the participants were well aware of the use of computers. The Table with respect to the "level of computer literacy skills" reveals that 23 (7.8%) of respondents were the novice, 169 (57.5%) respondents were intermediate, 87 (29.6%) respondents were advanced, 15 (5.1%) respondents were considered themselves as the expert. Hence, the data reveals that majority of respondents were of intermediate level in respect of their having computer literacy skills. The Table further shows that 81 (27.6%) respondents used the library of Lahore High Court Bar Association (LHCBA) on daily basis, 70 (23.8%) respondents used the LHCBA Library on weekly basis, 31 (10.5%) respondents used the LHCBA Library on monthly basis, 97 (33.0%) respondents used the LHCBA Library occasionally, whereas 15 (5.1%) respondents never used the LHCBA Library in the study. The data also reveals that a significant number of Legal Professionals are regular users of the LHCBA Library and getting aid on daily basis as well.

Table 3 Impact of ICT Skills on Legal Professionals in Practice

Sources of information	**Mean**	**SD**	**t.**
Digital literacy skills empower me in legal practice.	4.00	.79	87.34
Digital skills have made it easier for me to distribute, share, capture & apply knowledge in legal practice.	4.09	.71	98.74
ICT skills reduce my dependence on print materials in legal practice.	3.81	.94	69.83
ICT skills keep me updated with latest amendments in the profession.	4.04	.74	93.71
Using Internet is easier for me in information searching and retrieval.	4.09	.78	89.51
Digital skills are effective in my legal practice.	4.02	.79	87.50
Electronic Law databases enhance my capabilities of information searching and gathering	3.99	.86	79.14
Internet helps considerably in finding my required legal information.	4.09	.74	94.95
The availability of electronic information resources has a positive impact on my information searching.	4.05	.77	90.76
The law databases enhance my capabilities of information gathering.	4.09	.76	92.11

Table 4 reveals That most of the participants agreed with the statement that Digital literacy skills empowered them in their legal practice (*Mean*=4.00, *SD*=.79 & *t*=87.34). Similarly, a

significant number of respondents were also agreed with the statement that Digital skills had made it easier for them to distribute, share, capture & apply knowledge in legal practice (*Mean*=4.09, *SD*=.71 & *t*=98.74). That most of the participants have also agreed with the statement that ICT skills reduce their dependence on print materials in their legal practice (*Mean*=3.81, *SD*=.94 & *t*=69.83). That a large number of respondents were also agreed that ICT skills kept them me updated with latest amendments in the profession (*Mean*=4.04, *SD*=.74 & *t*=93.71). That most of the participants agreed with the statement that using the Internet was easier for them in information searching and retrieval (*Mean*=4.09, *SD*=.78 & *t*=89.51). That most of the participants were agreed with the statement that Digital skills were effective in their legal practice (*Mean*=4.02, *SD*=.79 & *t*=87.50). That most of the participants were agreed with the statement that electronic databases enhanced their capabilities of information searching and gathering (*Mean*=3.99, *SD*=.86 & *t*=79.14). That most of the participants were agreed with the statement that Internet helped considerably in finding their required legal information (*Mean*=4.09, *SD*=.74 & *t*=94.95). That most of the participants have agreed with the statement that the availability of electronic information resources had a positive impact on their information searching (*Mean*=4.05, *SD*=.77 & *t*=90.76). Similarly, That most of the participants have agreed with the statement that the law databases enhance their capabilities of information gathering. (*Mean*=4.09, *SD*=.76 & *t*=92.11)

5.2 Regression Test

Regression test was conducted to know impact of ICT skills upon Legal Professionals and their practice.

Table 4 Model Summary

					Change Statistics				
Model	R	R^2	Adjusted R^2	SE	R^2 Change	F Change	df1	df2	Sig. F Change
1	.57[a]	.32	.32	4.80	.32	140.16	1	292	.000
2	.60[b]	.361	.36	4.67	.04	16.69	1	291	.000

a. Predictors: (Constant), Use of Lahore High Court Bar Association Library

b. Predictors: (Constant), Use of Lahore High Court Bar Association Library, ICT Skills

Stepwise regression was conducted in two steps. In the first step, the impact of the use of Library on the Legal Professionals was determined. The value of R^2 indicates that 32% variation on the impact of practices of the Legal Professionals was due to using of LHCBA Library meaning thereby that the Legal Professionals are facilitating with the use of LHCBA Library.

In the second step, the impact of the use of Library and ICT Skills of Legal Professionals were determined. The value of R^2 indicates that 36% variation on the impact of digital competencies of the Legal Professionals was due to using of LHCBA Library as well as with ICT Skills.

Table 5 ANOVA[c]

Model		Sum of Squares	Df	Mean Square	F	Sig.
1	Regression	3226.181	1	3226.18	140.16	<.001[a]
	Residual	6721.126	292	23.02		
	Total	9947.306	293			
2	Regression	3590.792	2	1795.40	82.19	<.001[b]
	Residual	6356.515	291	21.84		
	Total	9947.306	293			

a. Predictors: (Constant), Use of Lahore High Court Bar Association (LHCBA) Library

b. Predictors: (Constant), Use.library, ICT.skill

c. Dependent Variable: Impact

In stepwise relation, two models were tested. In the first model, the impact of the use of Library on the Legal Professionals was determined. In the second model use of the library and the ICT skills were tested. ANOVA analysis indicates that in both steps results were significant. To find the sign of the model coefficients further tests were conducted.

Table 6

Coefficients						
		B	SE	β	T	Sig.
1	(Constant)	18.17	1.89		9.63	<.001
	Use of LHCBA Library	.70	.06	.57	11.84	<.001
2	(Constant)	16.35	1.89		8.65	<.001
	Use library	.61	.06	.50	10.00	<.001
	ICT skill	.46	.11	.20	4.07	<.001

a. Dependent Variable: Impact

T. test was conducted in order to test the coefficient of both the models. The result of the *T.* test indicates that use of LHCBA Library and the ICT skills have an impact on practices of the Legal Professionals. The impact of the use of Library (β=.50, P<.001) is greater than the impact of ICT skills (β=.20, P<.001)

6.0 Findings

According to the results, digital media has a great impact on information seeking digital resources enhanced information searching capabilities of users. Digital resources enable to remain up-to-date in user's knowledge domain. When Legal Professionals use digital information resources it makes easy to prepare the case. According to respondents, their research output has been enhanced. These e-resources have a positive impact on their professional efficiency. They prefer digital resources over print resources if they are well trained to use these digital resources.

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